R 5600 BEHAVIORAL GUIDELINES

A. Purpose

Pursuant to 6A: 16-7.1 (b), these guidelines were established to achieve the following purposes:

1. Foster the health, safety and social and emotional well-being of students;
2. Support the establishment and maintenance of civil, safe, secure, supportive and disciplined school environments conducive to learning;
3. Promote achievement of high academic standards;
4. Prevent the occurrence of problem behaviors;
5. Establish parameters for the intervention and remediation of student problem behaviors at stages of identification; and
6. Establish parameters for school responses to violations of the code of conduct to take in account, at a minimum, the severity of the offenses, the developmental ages of the student offenders and students' histories of inappropriate behaviors in accordance with N.J.A.C. 6A:16-7.2 through 7.9, as appropriate.

B. The following list provides guidelines upon which consequences will be dispensed in an effort to change behavior and help students make better decisions. However, each case must be individually evaluated and the administration has the right to determine the appropriate consequences based on the facts of the offense. As with most school discipline, every effort shall be made to contact the parent/guardian to make them aware of the situation involving their child. Based on the severity of the offense, the consequences could be the maximum for that particular offense, regardless of the frequency of the offense. Behavioral guidelines are in effect whenever school jurisdiction is applicable. Student offenses are cumulative throughout the high school career. Any violations of offenses listed as drug/alcohol infractions will result in cumulative discipline. Any violations of offenses listed as violence or threat of violence will result in cumulative discipline. Therefore, any subsequent violations in the drug/alcohol or violence categories will be deemed multiple offenses. Student offenses committed during Lunch and Learn may result in the loss of Lunch and Learn privileges.

The New Jersey Department of Education and the New Jersey Department of Law and Public Safety recognize the important value of partnerships between schools and law enforcement. As a result, a memorandum of agreement between educational officials and law enforcement agencies has been designed to ensure

cooperation between law enforcement and educational officials to protect and ensure the safety of the education community. Referrals to law enforcement are required with respect to drugs (possession and/or distribution), weapons and potential acts of violence that directly endanger the safety and well-being of members of the school community. In addition to the mandatory referrals to law enforcement, school Administrators are encouraged to consult with law enforcement authorities for any offense that they believe may warrant action outside of school or information that should be brought to the attention of law enforcement to maintain the safety and security of all students and staff. School Resource Officers (SROs) are assigned to each of our high schools for the safety and well-being of our students and staff. SROs also play an important role in our schools by actively participating in public awareness and prevention programs and educational initiatives.

The Lenape Regional High School District is required under the No Child Left Behind Act (Title IX, Part E, Section 9532) to provide victims of violent criminal offenses the opportunity to transfer to another school in the district. The transfer process will be addressed through the intra-district transfer policy.

Lenape complies with all procedural safeguards set forth at 20 U.S.C.A. §1400, *et seq.* and N.J.A.C. 6A:14-1.1, *et seq.*, that are provided to those students entitled to special education and related services.
The Behavioral Guidelines shall be disseminated annually to all school staff, students and parents.

C. Chart of Discipline

PLEASE NOTE:

***SWAP* REPRESENTS SATURDAY WORK ALTERNATIVE PROGRAM. This work entails minor building and grounds maintenance.**

***ISS* REPRESENTS IN SCHOOL SUSPENSION.**

1. Below is a Chart of Student Discipline listing school responses to violations of behavioral expectations. These behavioral guidelines and school responses include, but are not limited to:

1. **ALCOHOL/DRUG OFFENSE (INCLUDING OVER THE COUNTER MEDICATION, SYNTHETIC DRUGS, AND/OR DRUG PARAPHERNALIA)- POSSESSION (Refusal to comply with district rules and state law shall be considered an offense.)**

First Offense: Minimum 5 Day Suspension, up to 10 Day Suspension and 6 Counseling Sessions with District SAC / Parent Conference / Participation in Post Incident Drug Screening Program / Parking Privileges revoked /Referral to I&RS / Police Intervention NOTE: Any subsequent drug/alcohol related offense will result in a Superintendent's Hearing.

Second Offense: Suspension pending Superintendent's Hearing / Expulsion Hearing / Police Intervention

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2. **ALCOHOL/DRUG OFFENSE (INCLUDING OVER THE COUNTER MEDICATION) - USE (Refusal to comply with district rules and state law shall be considered an offense and student will receive an additional 3 days of suspension.)**

First Offense: 5 Day Suspension and 6 Counseling Sessions with District SAC / Participation in Post Incident Drug Screening Program / Parking Privileges revoked/ Referral to I&RS NOTE: Any subsequent drug/alcohol related offense will result in a Superintendent's Hearing.

Second Offense: Suspension pending Superintendent's Hearing / Expulsion Hearing

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3. **ALCOHOL/DRUG OFFENSE (INCLUDING OVER THE COUNTER MEDICATION) - SALE OR DISTRIBUTION OF OR POSSESSION WITH INTENT TO DISTRIBUTE**

First Offense: Suspended pending Superintendent's Hearing (no ISS or SWAP option) / Expulsion Hearing / Police Intervention

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4. **ASSAULT ON SCHOOL EMPLOYEE**

First Offense: Exclusion pending Superintendent's Hearing / Expulsion Hearing in compliance with NJSA 18A:37-21 / Police Intervention

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5. **BIAS INCIDENT/CRIME (**Engaging in biased conduct that either directly or indirectly causes intimidation, harassment or physical harm to another member of the school community or disrupts the educational process.)

First Offense: Suspension up to 10 days pending Superintendent's Hearing / Expulsion Hearing / Police Intervention

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6. **BOMB THREATS** (resulting in evacuation of the building and/or Police Intervention)

First Offense: 10 day suspension (no ISS or SWAP option) pending Superintendent's Hearing / Expulsion Hearing / Police Intervention

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7. **BUS MISCONDUCT**

First Administrative Referral: Detention (Lunch/Administrative)
Second Administrative Referral: Up to 3 days suspension
Subsequent Referrals: Suspension pending Superintendent's Hearing / Expulsion Hearing

The district has the right to exclude the student from using district transportation. Parents would become responsible for providing transportation.

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8. **CHEATING (TEST/ASSESSMENT)**

First Offense: Student to receive "0" for assessment / Detention or 1 day suspension

Subsequent Offenses: Student to receive "0" for assessment / Suspension up to 3 days / Administrative Review

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9. **CLASS DISRUPTION** Will be handled through teacher assigned detention, interaction with parents, and/or guidance involvement. After these options have been exhausted the student will be referred to the office for administrative intervention.

First Administrative Referral:	Detention Lunch/Administrative
Second Administrative Referral:	Up to 3 days Suspension
Third Administrative Referral:	Up to 5 Day Suspension / Administrative Review
Subsequent Referrals:	10 day suspension pending Superintendent's Hearing / Expulsion Hearing

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10. **CREATING A FALSE ALARM**

First Offense:	10 day suspension (no ISS or SWAP option) pending Superintendent's Hearing / Expulsion Hearing / Police Intervention

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11. **CUTTING ADMINISTRATIVE/LUNCH DETENTION**

First Offense:	Original detention reassigned plus an additional detention added
Second Offense:	3 Detentions (Lunch/Administrative)
Third Offense:	Up to 1 Day Suspension
Subsequent Offenses:	Up to 3 day Suspension

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12. **CUTTING CLASS** (including study hall)
Teacher will speak to student regarding absence from class prior to submitting cut slip. If the student is not available to question regarding absence, teacher will refer cut slip to the main office.

First Offense:	2 Detentions (Lunch/Administrative) / No credit for work missed due to cut
Second Offense:	Up to 3 days suspension / No credit for work missed due to cut
Subsequent Offenses:	Up to 5 day suspension pending Administrative Review / No credit for work missed due to cut / Superintendent's Hearing / Expulsion Hearing

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13. **CUTTING FULL DAY**

First Offense:	SWAP Detention / No credit for work missed due to cut
Second Offense:	Up to 3 day Suspension / No credit for work missed due to cut
Subsequent Offenses:	Up to 5 Suspension / No credit for work missed due to cut / Administrative Review Hearing

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14. **CUTTING SWAP**

First Offense:	Cutting 1 day of SWAP will result in 2 days of ISS

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15. **CUTTING TEACHER ASSIGNED DETENTION**

First Administrative Referral:	Detention (Lunch/Administrative)
Second Administrative Referral:	2 Detentions (Lunch/Administrative)
Third Administrative Referral:	1 Day Suspension.

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16. **DEFIANCE/WILLFUL DISOBEDIENCE**

First Offense:	Detention (Lunch/Administrative) / and/or Up to 1 Day Suspension based on the nature of the offense
Second Offense:	Detention (Lunch/Administrative) and/or Up to 3 Day Suspension
Third Offense:	Up to 5 Day Suspension
Subsequent Offenses:	5 day suspension pending Administrative Review / Superintendent's Hearing / Expulsion Hearing

17. **DESTRUCTION OF PROPERTY**

First Offense:	Suspension up to 10 days / referral to guidance department for counseling / Administrative Review/ Superintendent's Hearing / Expulsion Hearing / Restitution / possible Police Intervention
Subsequent Offenses:	Suspension pending Administrative Review /Superintendent's Hearing / Expulsion Hearing / Restitution / possible Police Intervention

18. **DRESS CODE VIOLATION**

First Offense:	Attempts will be made to resolve the problem through change of clothing / explanation with warning /and/or Detention (Lunch/Administrative)
Second Offense:	Change of clothing/ Detention (Lunch/Administrative)
Subsequent Offenses:	Change of clothing / suspension up to 3 days

19. **USE OF INTERNET-ENABLED DEVICES WITHOUT PERMISSION**

First Offense:	Teacher Warning
Second Offense:	Teacher Detention/Parent Notification
Third Offense:	Administrative Detention/Educational/Counseling Component
Fourth Offense:	Administrative Detention/ Educational/Counseling Component
Fifth Offense:	SWAP Detention/Parent Notification



Subsequent Offenses: Suspensions/SWAP/ Confiscation of Phone/Parent Notification

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20. **TAKING, ALTERING, AND/OR DISTRIBUTING PICTURE(S), IMAGE(S), VIDEO OR ANY RECORDING OF AN INDIVIDUAL(S) WITHOUT HIS/HER PERMISSION**

First Offense: Up to 5 day suspension / Administrative Review/ Superintendent's Hearing

Second Offense: Up to 10 day suspension/ Superintendent's Hearing/Expulsion Hearing

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21. **ENDANGERING WELFARE OF OTHERS, HAZARDOUS BEHAVIOR, THROWING OBJECTS OF ANY KIND**

First Offense: Up to 3 day suspension

Second Offense: Suspension up to 5days / student's status in class maybe reviewed

Subsequent Offenses: Suspension up to 10 days / status in class subject to review

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22. **FALSIFICATION OF PASSES, PERMITS OR ANY OTHER DOCUMENTS**

First Offense: Suspension up to 2 days

Second Offense: Suspension up to 3 days

Third Offense: Suspension up to 5 days / Administrative Review Hearing

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23. **POSSESSION/USE OF DEVICE (S) with Potential to Cause Substantial Disruptions and/or Bodily Harm (i.e. Mace, Laser Pointer, Stink Bomb, Smoke Bombs, Firecrackers, etc.)**



First Offense:	Confiscation and Suspension up to 5 days (No SWAP) possible Police Intervention
Second Offense:	Confiscation and 5 day suspension / Administrative Review / possible Police Intervention
Subsequent Offenses:	Confiscation and Suspension up to 10 days / Superintendent's Hearing / possible Police Intervention

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24. **FOUND IN UNAUTHORIZED AREA**

First Offense:	Warning plus explanation / up to 2 Day Suspension depending upon the nature of the incident
Second Offense:	Suspension up to 3 days
Subsequent Offenses:	5 day suspension pending Administrative Review / Superintendent's Hearing / Expulsion Hearing

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25. **GAMBLING**

First Offense:	Suspension up to 5 days / possible Police Intervention
Second Offense:	Suspension up to 10 days with mandatory counseling /possible Police intervention
Subsequent Offenses:	10 day suspension pending Superintendent's Hearing /Expulsion Hearing / possible Police Intervention

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26. **GANG ACTIVITY AND/OR INVOLVEMENT** *The severity of the incident may result in long term suspension up to 45 days. (Pursuant to N.J.S.A. 18A:37-4, the suspension may extend until the second regular Board meeting after the date of suspension.)*

First Offense:	Suspension up to 10 days (no ISS or SWAP option) with Police Intervention /Administrative Review
Subsequent Offenses:	10 day suspension pending Superintendent's Hearing / Expulsion Hearing / Police Intervention

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27. **HARASSMENT/BULLYING/INTIMIDATION/HAZING**

First Offense:	Up to 3 day suspension, possible Police Intervention
Second Offense:	Up to 10 day suspension pending Administrative Review and mandatory counseling / Superintendent's Hearing / Expulsion Hearing / possible Police Intervention
Subsequent Offenses:	Suspension pending Expulsion Hearing / possible Police Intervention

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28. **ILLEGAL PARKING**

First Offense:	Warning and/or Detention (Lunch/Administrative)
Second Offense:	Saturday Detention and Suspension of parking permit
Third Offense:	Up to 3 day suspension / Loss of parking privileges

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29. **INAPPROPRIATE BEHAVIOR - STUDENT BEHAVIOR WHICH IS NOT APPROPRIATE FOR THE SCHOOL SETTING**
Shall be handled on a case by case basis depending on the severity of the offense.

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30. **LATES TO SCHOOL (Unexcused)**

"Lates" are evaluated on a Semester basis, allowing student to "start over" at the start of Semester 2

Level 1 (7:30am - 7:45am)

#1-3 warning via email to parent and student (cumulative with Level 2)
#4 warning via an in-person meeting with AP and a follow up parent phone call

#5 and up will result in a **Lunch Detention** -assigned by the AP during an in-person meeting and a follow up parent phone call

Level 2 (7:46am - 9:36am)

#1-3 warning via email to parent and student (cumulative with Level 1)
#4 warning via an in-person meeting with AP and a follow up parent phone call
#5 and up will result in an **Administrative Detention**- assigned by the AP during an in-person meeting and a follow up parent phone call

Level 3 (9:36am and on)

Student will be marked absent for ½ day

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31. **LEAVING SCHOOL EARLY UNEXCUSED**

Students will receive 4 cumulative warnings (regardless of level)

Early Releases from school are evaluated on a semester bases, allowing students to "start over" at the start of semester 2

Level 1 (2:11 PM – 2:26 PM)

#1-3 warning via email to parent and student
(cumulative with Level 2)
#4 warning via an in-person meeting with AP and follow up parent phone call
#5 and up will result in a **Lunch Detention** – assigned by the AP during an in-person meeting and follow up parent phone call

Level 2 (12:27 PM – 2:10 PM)

#1-3 warning via email to parent and student (cumulative with Level 1)
#4 warning via an in-person meeting with AP and follow up parent phone call
#5 and up will result in an **Administrative Detention** – assigned by the AP during an in-person meeting and follow up parent phone call

Level 3 (leaving prior to 12:26 PM)
Student will be marked absent for ½ day

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32. **LEAVING SCHOOL PROPERTY WITHOUT PERMISSION**

First Offense:	Up to 3 day suspension / suspension of parking privileges for 45 school days/ possible Police Intervention
Second Offense:	5 day suspension and loss of parking privileges / Administrative Review Hearing/ possible Police Intervention
Subsequent Offenses:	Suspension up to 10 day / Possible Superintendent's Hearing/ possible Police Intervention

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33. **OBSCENE/PROFANE LANGUAGE OR GESTURES (VERBAL OR WRITTEN)**

First Offense:	Warning, Detention (Lunch/Administrative) and/or up to 3 days suspension depending on the nature of the incident
Second Offense:	Up to 5 day Suspension
Subsequent Offenses:	5 day suspension pending Administrative Review / Superintendent's Hearing

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34. **OBSCENE/PROFANE LANGUAGE OR GESTURES DIRECTED AT STAFF MEMBERS (VERBAL OR WRITTEN)**

First Offense:	Suspension up to 3 days depending on the nature of the incident
Second Offense:	Suspension up to 5 days / Administrative Review
Subsequent Offenses:	Suspension up to 10 days / Superintendent's Hearing

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35. **PLAGIARISM (Including the use of Artificial Intelligence without permission and/or proper citation)**

First Offense: Student to receive "0" for assignment - Detention (Lunch/Administrative) and/or up to 1 Day Suspension

Subsequent Offenses: Student to receive "0" for assignment / Suspension up to 3 days / Administrative Review

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36. **PORNOGRAPHY – VIEWING, POSSESSION OF AND/OR DISTRIBUTION**

First Offense: Suspension up to 3 days / Police Intervention

Subsequent Offenses: 10 day suspension pending Administrative Review Superintendent's Hearing / Expulsion Hearing / Police Intervention

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37. **POSSESSION OF A FIREARM –** *Pursuant to N.J.S.A. 18A:37-8 removal from the regular education program must be for a period of not less than one calendar year.*

First Offense: Exclusion pending Superintendent's Hearing / Expulsion Hearing / Police Intervention

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38. **POSSESSION OF WEAPONS (OTHER THAN GUN), USE OF WEAPONS, SALES OF WEAPONS, USE OF ANY IMPLEMENT AS A WEAPON** *The severity of the incident may result in long term suspension up to 45 days. (Pursuant to N.J.S.A. 18A:37-4, the suspension may extend until the second regular Board meeting after the date of suspension.)*

First Offense: Exclusion pending Superintendent's Hearing / Expulsion Hearing / Police Intervention

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39. **RACIAL, ETHNIC, RELIGIOUS, SEXUAL ORIENTATION AND/OR ANY OTHER DISTINGUISHING CHARACTERISTIC SLURS (INCLUDING BUT NOT LIMITED TO VERBAL, WRITTEN OR ELECTRONIC EXPRESSION)**

First Offense:	Suspension up to 5 days
Second Offense:	Suspension up to 10 day pending Administrative Review / Superintendent's Hearing / Expulsion Hearing / possible Police Intervention
Subsequent Offenses:	Suspension pending Expulsion Hearing / possible Police Intervention

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40. **SEXUAL HARASSMENT**

First Offense:	Suspension up to 5 days / Police Intervention.
Second Offense:	Suspension up to 10 day pending Administrative Review / Superintendent's Hearing / Expulsion Hearing / Police Intervention
Subsequent Offenses:	Suspension pending Expulsion Hearing / Police Intervention

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41. **SMOKING/VAPING/TOBACCO PRODUCTS/E-CIGARETTES/SMOKELESS TOBACCO - USE/POSSESSION**

First Offense:	3 day suspension/ possible Police Intervention / Counseling Sessions with Student Assistance Counselor (SAC)/ Students parking privileges will be revoked for duration of suspension per New Jersey: C.26:3D-66
Second Offense:	5 day suspension/ possible Police Intervention/ Counseling Sessions with Student Assistance Counselor (SAC)/ Students parking privileges will be revoked for 30 days
Third Offense:	10 day suspension pending Superintendent's Hearing/ Police Intervention / referral to municipal court / Students parking privileges will be revoked for duration of suspension per New Jersey C.26:3D-66
Fourth Offense:	10 day suspension pending Superintendent's Hearing/ possible Police Intervention/ referral to

municipal court/ Students parking privileges will be revoked

42. **SMOKING/VAPING/TOBACCO PRODUCTS/E CIGARETTES/SMOKELESS TOBACCO - DISTRIBUTION**

First Offense: Up to 5 days suspension pending Administrative Review / Counseling Sessions with Student Assistance Counselor (SAC)/Police Intervention/ Students parking privileges will be revoked for duration of suspension per New Jersey:C.26:3D-66

Subsequent Offense: 10 day suspension pending Superintendent's Hearing /Police Intervention / referral to municipal court/ Students parking privileges will be revoked for duration of suspension per New Jersey:C.26:3D-66

43. **SPEEDING / RECKLESS DRIVING**

First Offense: Suspension up to 3 days / Suspension of parking privileges for 45 school days

Second Offense: 3 day suspension, possible Police Intervention / Loss of parking privileges

Third Offense: Suspension up to 10 days / possible Police Intervention

44. **SUSPECTED ALCOHOL/DRUG OFFENSE**

First Offense: Student will undergo drug screening process. Specifically, evaluation by school nurse, an interview with Assistant Principal and immediate examination by physicians selected by parent or guardian if the physician is immediately available, or if not immediately available, by the Medical Inspector. If the Medical Inspector is not immediately available, the student shall be examined in the hospital emergency room,

accompanied by a member of the school staff designated by the principal, and a parent or guardian, if available / A written report of that examination shall be furnished within 24 hours by the examining physician to the superintendent of schools or administrative principal. If it is determined that the pupil was under the influence of alcohol or other illegal substance, the student shall not resume attendance until the student submits to the superintendent a written report certifying that he or she is physically and mentally able to return to school / Any discipline that is ordered in relation to the immediate examination shall be consistent with the policy on the use and/or possession of alcohol or other illegal substances and these guidelines.

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45. **TAKING PART IN BOYCOTT OF CLASS, DISRUPTION OF REGULAR SCHOOL DAY SCHEDULE**

First Offense: Suspension up to 5 days/ Superintendent's Hearing / Expulsion Hearing

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46. **THREATS: CRIMINAL/THREATS AGAINST INDIVIDUALS AND/OR THE SCHOOL (VERBAL, WRITTEN OR ELECTRONIC)**

First Offense: Suspension (no ISS or SWAP option) and/or suspension pending Administrative Review or Superintendent's Hearing depending on nature of offense / Police Intervention

Subsequent Offenses: Up to 10 day suspension (no ISS or SWAP option) pending Administrative Review /Superintendent's Hearing / Expulsion Hearing/ Police Intervention

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47. **THREATS: AGAINST INDIVIDUALS AND/OR THE SCHOOL (VERBAL, WRITTEN OR ELECTRONIC**

First Offense:	Up to 3 day suspension/ possible Police Intervention
Second Offense:	Up to 5 day suspension/ possible Police Intervention
Subsequent Offenses:	Up to 10 day suspension pending Administrative (no ISS or SWAP) Review/Superintendent's Hearing/ Expulsion Hearing / Police Intervention

48. **THEFT** (including, but not limited to passing counterfeit money)

First Offense:	Up to 5 day suspension and referral to guidance department for counseling / possible Police Intervention / Restitution when possible
Second Offense:	Up to 10 day suspension / Administrative Review Hearing / possible Police Intervention
Third Offense:	Suspension pending Superintendent's Hearing/Expulsion Hearing / possible Police Intervention

49. **THREAT ON A SCHOOL DISTRICT EMPLOYEE**

First Offense:	Depending on nature of offense, Suspension (no ISS or SWAP option) pending Superintendent's Hearing / Police Intervention

50. **TRESPASSING ON SCHOOL DISTRICT PROPERTY**

First Offense:	Up to 3 day suspension / Police Intervention
Subsequent Offenses:	Up to 5 days suspension / Police Intervention

51. **UNAUTHORIZED OCCUPANCY OF DISTRICT FACILITY / REFUSING TO LEAVE WHEN SO DIRECTED BY A PERSON OF AUTHORITY**

First Offense: Suspension up to 5 days / possible Police Intervention, if necessary / Superintendent's Hearing / Expulsion Hearing

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52. **USE OF AND/OR POSSESSION OF PAGER (NJ STATE LAW 2C:33-19) ***

First Offense: Confiscate and contact parent / possible Police Intervention
Second Offense: Suspension up to 5 days / Police Intervention
Third Offense: 10 day suspension / Police Intervention

* Pupils who volunteer or work for an emergency response team must provide documentation to the principal in order to be permitted to use/possess a pager on school grounds.

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53. **VIOLENCE INCIDENT – SIMPLE ASSAULT**

First Offense: Suspension up to 5 days / possible Police Intervention / Administrative Review / Superintendent's Hearing
Subsequent Offenses: Suspension up to 10 days / Administrative Review / Superintendent's Hearing / Expulsion Hearing / possible Police Intervention

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54. **VIOLENCE INCIDENT – AGGRAVATED ASSAULT**

First Offense: Suspension up to 5 days (no ISS or SWAP option) / Administrative Review / Superintendent's Hearing / Police Intervention
Subsequent Offenses: Suspension up to 10 days (no ISS or SWAP option) / Administrative Review / Superintendent's Hearing / Expulsion Hearing / Police Intervention

55. **VIOLENCE INCIDENT – FIGHT**

First Offense: Suspension up to 5 days (no ISS or SWAP option) / Administrative Review / Superintendent's Hearing / Police Intervention

Subsequent Offenses: Suspension up to 10 days (no ISS or SWAP option) / Administrative Review /Superintendent's Hearing / Expulsion Hearing / possible Police Intervention

56. **VIOLENCE INCIDENT – GROUP FIGHT**

First Offense: Suspension up to 5 days (no ISS or SWAP option) / Administrative Review /Superintendent's Hearing / Police Intervention

Subsequent Offenses: Suspension up to 10 days (no ISS or SWAP option) / Administrative Review / Superintendent's Hearing /Expulsion Hearing Police Intervention

2. The school responses to violations of behavioral expectations that are subject to student discipline including suspension or expulsion pursuant to N.J.S.A. 18A:37-2 outlined in a Chart of Student Discipline shall be consistent with the Board's policies and regulations/procedures on attendance, pursuant to N.J.A.C. 6A:16-7.6 and harassment, intimidation, and bullying pursuant to N.J.A.C. 6A:16-7.7.

3. The Principal or designee will maintain a list of community-based health and social service provider agencies available to support a student and a student's family, as appropriate, and a list of legal resources available to serve the community.

D. Expectations for Academic Achievement, Behavior, and Attendance

All students have a responsibility to comply with State statutes and administrative codes for academic achievement, behavior, and attendance, pursuant to N.J.A.C. 6A:32-8 and 12.1.

E. Behaviors That May Result in Suspension or Expulsion

In accordance with the provisions of N.J.S.A. 18A:37-2, any student who is guilty of continued and willful disobedience, open defiance of the authority of any teacher or person having authority over the student, the habitual use of profanity or of obscene language, or who shall cut, deface or otherwise injure any school property, shall be liable to punishment and to suspension or expulsion from school. Conduct which shall constitute good cause for suspension or expulsion of a student guilty of such conduct shall include, but not be limited to, any of the following:

1. Continued and willful disobedience;

2. Open defiance of the authority of any teacher or person, having authority over the student;

3. Conduct of such character as to constitute a continuing danger to the physical well-being of other students;

4. Physical assault upon another student;

5. Taking, or attempting to take, personal property or money from another student, or from the student's presence, by means of force or fear;

6. Willfully causing, or attempting to cause, substantial damage to school property;

7. Participation in an unauthorized occupancy by any group of students or others of any part of any school or other building owned by any school district, and failure to leave such school or other facility promptly after having been directed to do so by the Principal or other person then in charge of such building or facility;

8. Incitement which is intended to and does result in unauthorized occupation by any group of students or others of any part of a school or other facility owned by any school district;

9. Incitement which is intended to and does result in truancy by other students;



10. Knowing possession or knowing consumption without legal authority of alcoholic beverages or controlled dangerous substances on school premises, or being under the influence of intoxicating liquor or controlled dangerous substances while on school premises; and

11. Harassment, intimidation, or bullying.

Students shall also be suspended from school for assault upon a school staff member in accordance with the provisions of N.J.S.A. 18A:37-2.1 and 2.2.

F. Students' Rights

Students subject to the consequences of the Student Discipline/Code of Conduct Policy and Regulation shall be informed of their rights, pursuant to N.J.A.C. 6A:16-7.1(c)3.i. through vii., that include:

1. Advance notice of behaviors that will result in suspensions and expulsions that have been identified under authority of N.J.S.A. 18A:37-2;

2. Education that supports students' development into productive citizens;

3. Attendance in safe and secure school environments;

4. Attendance at school irrespective of students' marriage, pregnancy, or parenthood;

5. Due process and appeal procedures, pursuant to N.J.A.C. 6A:3-1.3 through 1.17, N.J.A.C. 6A:4 and, where applicable, N.J.A.C. 6A:14-2.7 and 2.8, and N.J.A.C. 6A:16-7.2 through 7.5;

6. Parent notification consistent with the policies and procedures established pursuant to N.J.A.C. 6A:16-6.2(b)3 and N.J.A.C. 6A:16-7.1 through 7.9; and

7. Protections pursuant to 20 U.S.C. § 1232g, Family Educational Rights and Privacy Act; 34 CFR Part 99, Family Educational Rights and Privacy; 20 U.S.C. § 1232h, Protection of Pupil Rights; 34 CFR Part 98, Student Rights in Research, Experimental Programs and Testing; P.L. 104-191, Health Insurance Portability and Accountability Act; 45 CFR Part 160, General Administrative Requirements; 20 U.S.C. § 7165, Transfer of

school disciplinary records; 42 CFR Part 2, Confidentiality of Alcohol and Drug Abuse Patient Records; N.J.S.A. 18A:40A-7.1, Confidentiality of certain information provided by students, exceptions; N.J.A.C. 6A:16-3.2, Confidentiality of student alcohol and other drug information; N.J.S.A. 18A:36-19, Pupil records, creation, maintenance and retention, security and access, regulations, nonliability; N.J.S.A. 2A:4A-60, Disclosure of juvenile information, penalties for disclosure; N.J.A.C. 6A:32-7, Student Records; N.J.A.C. 6A:14-2.9, Student records, as well as other existing Federal and State laws and rules pertaining to student protections.

G. Comprehensive Behavioral Supports

Below are behavioral supports that promote positive student development and the students' abilities to fulfill the behavioral expectations established by the Board. These behavioral supports may include, but are not limited to, the following:

1. Positive Reinforcement for Good Conduct and Academic Success

A student will be provided positive reinforcement for good conduct and academic success which may include, but are not limited to:
a. Student of the Month_____
b. Renaissance Smart Cookie Awards_____
_____
c. Principal's List_____
d. National Honor Society_____

2. Supportive Interventions and Referral Services

A student may be referred to the school's Intervention and Referral Services Team in accordance with the provisions of N.J.A.C. 6A:16-8.1 and 8.2 and Policy and Regulation 2417.

3. Students with Disabilities

For students with disabilities, the remedial measures and behavioral interventions and supports shall be determined and provided pursuant to N.J.A.C. 6A:14.

H. School Responses to Violations of Behavioral Expectations

1. In accordance with the provisions of N.J.A.C. 6A:16-7.1(c)5, the Student Code of Conduct shall include a description of school responses to violations of behavioral expectations established by the Board of Education that, at a minimum are graded according to the severity of the offenses, and consider the developmental ages of the student offenders and their histories of inappropriate behavior that shall:

   a. Include a continuum of actions designed to remediate and, where necessary or required by law, to impose sanctions;

   b. Be consistent with other responses, pursuant to N.J.A.C. 6A:16-5.5;

   c. Provide for equitable application of the Code of Student Conduct without regard to race; color; religion; ancestry; national origin; nationality; sex; gender; sexual orientation; gender identity or expression; marital, domestic-partnership, or civil union; mental, physical, or sensory disability; or any other distinguishing characteristic, pursuant to N.J.S.A. 10:5-1 et seq. and

   d. Be consistent with provisions of N.J.S.A. 18A:6-1, Corporal Punishment of Students.

I. Description of School Responses

School responses to violations of behavioral expectations are listed below:

1. Admonishment/Reprimand

   a. A school staff member in authority may admonish or reprimand a student's unacceptable conduct and warn the student that additional misconduct may warrant a more severe penalty.

2. Temporary Removal from Classroom

   a. The classroom teacher may direct the student report to the office of the administrator in charge of student discipline.



b. The teacher will complete a form that indicates the student's name and the conduct that has caused the student's removal from the teacher's room.

c. The administrator in charge of discipline will interview the student and determine which, if any, additional consequences shall be imposed.

3. Meeting with School Administration and Parent

a. The student's parent may be required to attend a meeting with the Principal or designee and the student to discuss the student's conduct and to ensure the parent and the student understand school rules and expectations.

4. Deprivation of Privileges

a. Students may be deprived privileges as disciplinary sanctions when designed to maintain the order and integrity of the school environment. These privileges may include, but are not limited to:

(1) Moving freely about the school building;

(2) Participation in co-curricular or inter/intrascholastic activities;

(3) Attendance at a school-related social or sports activity;

(4) Participation in a graduation ceremony, senior trip and prom;

(5) Transportation to and from school on a school bus; or

(6) Any other privilege the Building Principal or designee determines may be appropriate and consistent with Policy and Regulation 5600 and N.J.A.C. 6A:16-7.1 et seq.

5. Detention

   a. A student may be required to report before or after the school day to detention. This detention may be assigned by the teacher or the Principal or designee.

   b. Lunch detention

   c. Transportation to detention before school or from detention after school will be the responsibility of the parent.

   d. A student may be excused from detention only for an unavoidable commitment previously made; any such excused detention must be made up on another day.

6. Grade Adjustment

   a. A student who has cheated on a test or assignment, plagiarized material, falsified sources, refused to submit assignments, or otherwise indulged in academic dishonesty or negligence may suffer a reduced grade by virtue of the disqualified work. In no other instance may a student's grade be lowered as a direct penalty for misconduct.

7. SWAP

8. In-school Suspension

   a. If the school operates an in-school suspension program, a student may be removed from his/her regular classes and required to report to the in-school suspension program.

   b. In-school suspension will not be imposed without the due process procedures set forth in Policy and Regulation 5610.

9. Suspension from School

   a. A student may be denied the right to attend school for a period of time pursuant to N.J.S.A. 18A:37-2, N.J.A.C. 6A:16-7.2 and 6A:16-7.3, and Policy 5610.



b. Suspension from school will not be imposed without the due process procedures set forth in Policy and Regulation 5610.

10. Expulsion

a. The Board may expel a general education student from school, pursuant to N.J.S.A. 18A:37-2, N.J.A.C. 6A:16-7.4, and Policy 5620.

b. Expulsion is an extremely serious disciplinary measure and will not be imposed without the due process set forth in Policy and Regulation 5610 and Policy 5620.

J. Students with Disabilities

For students with disabilities, subject to Individualized Education Programs in accordance with 20 U.S.C. § 1400 et seq., the Individuals with Disabilities Educational Improvement Act, N.J.A.C 6A:14, and accommodation plans under 29 U.S.C. §§ 794 and 705(20), student discipline and the Code of Student Conduct shall be implemented in accordance with the components of the applicable plans.

The Board assures that physical restraint and seclusion techniques on students with disabilities are only used in an emergency in which the student is exhibiting behavior that places the student or others in immediate physical danger in accordance with the provisions at N.J.S.A. 18A:46-13.4 *et seq*.

K. Annual Review

The Superintendent will designate a school staff member to coordinate an annual review and update of Policy and Regulation 5600. The Superintendent's designee will:

1. Compile an annual summary report of violations of the student behavioral expectations and the associated school responses to the violations in the Student Discipline/Code of Conduct Policy and Regulation.

2. Convene a Student Discipline/Code of Conduct Committee to review the annual summary report and to develop recommendations, if any, to improve and update the Student Discipline/Code of Conduct Policy and Regulation.

3. The Superintendent's designee shall submit the Committee's recommendations, if any, to improve or update the Student Discipline/Code of Conduct Policy and Regulation.

4. The Superintendent will review the Committee's report with school administrators and will determine if the Student Discipline/Code of Conduct Policy and Regulation should be updated.

5. The Superintendent will recommend to the Board revisions to the Student Discipline/Code of Conduct Policy, if needed.

L. Policy and Regulation Publication and Distribution

The Student Discipline/Code of Conduct Policy and Regulation 5600, including the Chart of Student Discipline shall be disseminated annually to all school staff, students, and parents. These documents may be disseminated in handbooks, electronically, or in hard copy form. Principals will ensure these documents are made available to all students on or before the first day of each school year and to transferring students on the first day of their enrollment in this district.

Final implementation of these Behavioral Guidelines shall be subject to the authority of the Superintendent of Education and the Board of Education.

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